

GZ: 2022-0.616.013 dated September 1, 2022 (Case Number: DSB-D123.284)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Bernhard A*** (complainant) from **** K***berg dated August 1, 2018 against N*** (Austria) GmbH (respondent, registered in the commercial register under FN *4*3*8k by the Commercial Court of Vienna) from **** Vienna, represented by Dr. Erich W***, attorney at law in **** Vienna, regarding a violation of the right to information as follows:

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The C O M P L A I N T is D I S M I S S E D.

Legal basis: Art. 4 No. 11 and 25, Art. 5 para. 1 lit. a and b, Art. 8 para. 1 and 3, Art. 15 para. 1, Art. 17 para. 1 lit. a, Art. 51 para. 1, Art. 57 para. 1 lit. f as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1.

In his complaint dated August 1, 2018, which was received by the Data Protection Authority on the same day via email, the complainant stated that he had submitted a request for information pursuant to Art. 15 GDPR via email to the respondent on July 1, 2018. However, he only received a notification that his account had been deleted because it had become apparent during the processing of his request that he was not yet of legal age. His data had been deleted, although he had only requested information. He had not made any false statements regarding his date of birth. The fact that he had submitted a request for information had been used against him, which was certainly not appropriate. The complainant requested a determination of a violation of his right to information.

2.

The Data Protection Authority, since the complete response from the respondent was not attached to the complaint, issued a defect remedy order (procedural order dated August 13, 2018, GZ: DSB-D123.284/0001-DSB/2018). Since this was not fully complied with, the complaint was initially dismissed by decision dated October 25, 2018, GZ: DSB-D123.284/0006-DSB/2018, in accordance with § 13 para. 3 AVG.

3.

This decision was annulled as unlawful by the ruling of the Federal Administrative Court dated May 24, 2022, GZ: W256 2228170-1/5E, because the defect remedy order had not been served to the legal representatives (parents) of the complainant and was therefore ineffective. Consequently, the defect remedy order was repeated (procedural order dated June 3, 2022, GZ: 2022-0.407.513) - the complainant is now of legal age. In a letter dated June 9, 2022, the complainant submitted the missing documents.

4.

Subsequently, the investigation procedure was initiated. The respondent, represented by legal counsel, stated in its response dated July 4, 2022, following a corresponding request from the Data Protection Authority (procedural order dated June 10, 2022, GZ: 2022-0.422.857), the following: The respondent had requested the complainant to provide proof of identity upon receipt of his request for information. On August 1, 2018, the requested data protection information was then provided in full. However, upon reviewing the submission, it was first noted that the complainant had registered as a minor (at 14 years old) for the customer loyalty program "N***Card Program." This was actually not permissible according to the respondent's terms and conditions. As a consequence, his membership

was terminated, and he was deregistered from the "N***Card Program." The assertion that this occurred in response to the request for information is not accurate. Neither the termination of his membership in the "N***Card Program" nor the provision of the requested information violated the complainant's right to information under Art. 15 GDPR.

5.

The complainant, to whom the results of the investigation procedure were presented (procedural order dated July 11, 2022, GZ: 2022-0.485.835), did not provide any further comments.

B. Subject of the Complaint

6.

Based on the submissions of the parties, the subject of the proceedings is the question of whether the respondent provided the complainant with a lawful data protection information in response to his request dated July 1, 2018, and whether a violation of the right to information occurred due to a possible deletion of his data in connection with this request for information.

C. Findings of Fact

7.

The complainant was born on March 22, 2003, and thus completed his fifteenth year of life on March 22, 2018.

8.

Assessment of Evidence: The complainant's date of birth is known to the Data Protection Authority from several complaint proceedings initiated by him and is on record.

9.

On February 22, 2018, the complainant registered as a member for the respondent's customer loyalty program called "N***Card Program." The respondent began processing the complainant's personal data for the purpose of managing his membership in this context.

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10. Evaluation of Evidence: These findings are based on the credible (and undisputed) statements of the respondent (response dated July 4, 2022, enclosed as an entry in case number: 2022-0.485.835).

11. On July 1, 2018, the petitioner sent an email to the respondent containing the following:

"From: Bernhard A***

To: service@n***.at

Cc:

Sent: 01.07.18 21:**. **

Subject: Request for Information pursuant to GDPR

Dear Sir or Madam!

I hereby submit a request for information regarding my personal data in accordance with Article 15 of the General Data Protection Regulation (Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data, on the free movement of such data, and repealing Directive 95/46/EC, GDPR). Please inform me about the following points:

Article 15 GDPR Right of access by the data subject

(1) The data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed; if that is the case, they have the right to access their personal data and to the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

d) where possible, the envisaged duration for which the personal data will be stored, or, if not possible, the criteria used to determine that duration;

e) the existence of the right to rectification or erasure of personal data concerning them or to restriction of processing by the controller or to object to such processing;

- f) the existence of the right to lodge a complaint with a supervisory authority;
 - g) if the personal data are not collected from the data subject, any available information as to their source;
 - h) the existence of automated decision-making, including profiling, pursuant to Article 22 paragraphs 1 and 4 GDPR and — at least in those cases — meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
- (2) If personal data are transferred to a third country or to an international organization, the data subject has the right to be informed of the appropriate safeguards pursuant to Article 46 GDPR relating to the transfer.
- (3) The controller shall provide a copy of the personal data undergoing processing. For any further copies requested by the data subject, the controller may charge a reasonable fee based on administrative costs. If the data subject makes the request electronically, the information shall be provided in a commonly used electronic format, unless otherwise specified.
- (4) The right to receive a copy pursuant to paragraph 1b shall not adversely affect the rights and freedoms of others.

I have submitted the request electronically and wish to be informed electronically.

You are obliged to inform me within one month of receipt of the request about the measures you have taken. This period may be extended by a further two months where necessary, taking into account the complexity and number of requests. You must inform me of any extension of the period within one month of receipt of the request, together with the reasons for the delay. If you believe that you do not need to respond to the request, you must inform me of the reasons for this no later than one month after receipt of the request and of the possibility of lodging a complaint with a supervisory authority.

Sincerely,

Bernhard A***

12. The respondent replied on July 2, also by email, with a letter containing the following:

"From: service@n***.at

Sent: Monday, July 2, 2018 08:**

To: bernhard.a***@h***com.at

Subject: Request for Information pursuant to GDPR

Dear Mr. A***,

Thank you for your message.

After reviewing your data, I must inform you that I am not permitted to provide you with any information.

Your date of birth indicates that you are not yet of legal age, and therefore, we have no obligation to provide information.

Should you be of legal age, please send us a copy of your ID for identification purposes.

Thank you for your effort.

Sincerely,

Franziska B***

N*** Customer Service"

13. The petitioner responded on July 2, 2018, by email as follows:

"From: bernhard.a***@h***com.at

To: service@n***.at

Cc:

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Sent: 02.07.18 23:**.**

Subject: RE: Request for Information under GDPR

Dear Sir or Madam!

I refer to your message dated July 2, 2018.

The Austrian Data Protection Act (DSG) as amended by the Data Protection Adaptation Act 2018

and the Data Protection Deregulation Act 2018 sets the age limit for the legality of a child's consent in relation to the provision of services of an information society at the age of 14.

I therefore believe that you are permitted to provide me with the information and request that you comply

with your information obligation pursuant to § 44 of the Data Protection Act and Art. 15 of the General Data Protection Regulation. To this end, I am sending you a copy of my passport as an attachment to verify my identity. Otherwise, I will be compelled to file a complaint pursuant to Art. 77 of the General Data Protection Regulation with the competent authority.

Sincerely,
Bernhard A***

14. The respondent replied on July 3, 2018, via email as follows:

"From: SERVICE@N***.AT

Sent: Tuesday, July 3, 2018 08:**

To: bernhard.a***@h***com.at

Subject: [Ticket# *6*4*23**1] RE: Request for Information under GDPR

Dear Mr. A***,

Please accept my apologies that your initial request was not handled with the necessary attention.

In order for me to process your request, please return the attached form filled out and signed to the address provided.

Once the completed document has been received, I will proceed with further processing.

Thank you for your support, and I am here for you if you have any further questions.

Sincerely,
Robert C***
N*** Customer Service"

15. After submitting the documents requested by the respondent, the complainant received an email from the respondent on August 1, 2018, containing the following content (email text and attachments):

"From: SERVICE@N***.AT

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Sent: Wednesday, August 1, 2018 10:**

To: bernhard.a***@h***com.at

Subject: [Ticket# *6*4*23**1] RE: Request for Information under GDPR

Attachments: Information according to EU GDPR - Bernhard A***.pdf;

Data Protection Inquiry_Data_Bernhard A***.pdf; Retail

Customer Master Data.pdf

Hello Mr. A***,

My colleagues and I have gathered the data, and I have prepared the information.

The information and the associated documents are attached as PDF files.

Since we now know that you are not yet 18 years old, I have deregistered you from the N***Card program

and terminated your membership.

According to our terms of participation, adulthood is a prerequisite.

Please understand that you may still receive catalogs in the next 6 weeks due to production reasons.

If you have any further questions, I am here for you.

Sincerely,
Robert C***
N*** Customer Service"

[Note from the editor: The comprehensive information letter from the respondent, presented here as a facsimile (in the form of several PDF files), would have been very labor-intensive to anonymize. Moreover, since it was not contested by the complainant in substance, it has been removed.]

16. Evaluation of evidence: These findings are based on the documents submitted by the complainant (attachments to the complaint dated August 1, 2018, receipt in file number: DSB-D123.284/0001-DSB/2018, and attachments to the supplementary complaint dated June 9, 2022, receipt in file number: 2022-0.422.857).

17. Following the distribution of information, the data of the complainant processed for the purposes of the customer loyalty program "N***Card Program" have been deleted.

18. Evaluation of evidence: as above, para. 10. That a deletion has occurred corresponds to the complainant's assertions (see above para. 1).

D. Legally, this results in:

D.1. Summary:

19. The complaint has proven to be unfounded, as neither Art. 15 (Right of Access) nor Art. 17 (Right to Erasure) can be interpreted as granting a right to non-deletion of data or retention of data, and the purpose of processing has been fulfilled by the termination of the complainant's membership.

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the complainant in the customer loyalty program "N***Card Program" has ceased. The content and scope of the information provided comply with the law and have not been contested in substance. In this respect, the present case differs from the one underlying the decision of September 30, 2021, GZ: 2021-0.664.183.

D.2. Applicable Legal Provisions - Right to Information:

20. According to Art. 15 para. 1 GDPR, the data subject has the right to request confirmation from the controller as to whether personal data concerning them is being processed; if this is the case, they have the right to obtain information about this personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data being processed;
- c) the recipients or categories of recipients to whom the personal data has been disclosed or will be disclosed, in particular, recipients in third countries or international organizations;
- d) if possible, the planned duration for which the personal data will be stored, or, if that is not possible, the criteria used to determine that duration;
- e) the existence of a right to rectification or erasure of personal data concerning them or to restriction of processing by the controller or a right to object to such processing;
- f) the existence of a right to lodge a complaint with a supervisory authority;
- g) if the personal data is not collected from the data subject, all available information about the source of the data;
- h) the existence of automated decision-making, including profiling, pursuant to Article 22 paragraphs 1 and 4 and — at least in these cases — meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

21. The right to information is, according to the wording of Art. 15 para. 1 ("information about this" – i.e., the "personal data" processed by the controller), fundamentally limited to those data that are actually being processed at the time the request for information is received. No right to the processing of personal data can be derived from Art. 15 GDPR or other provisions of the GDPR.

22. The data protection authority has stated regarding the previous legal situation (§ 26 DSG 2000) (emphasis not in the original):

23. In connection with the right to receive information about one's own data, there is no right to obtain information or evidence regarding specific facts through such information or to compel a client to admit such facts. The basis for any data protection-related provision of information is the actual state of stored personal data and available information about their use, not any kind of desired state. Even if, in a hypothetical case, data had been demonstrably deleted contrary to § 26 para. 7 DSG 2000, there would still be no right in the complaint procedure due to a violation of the right to information to technically reconstruct that data or to conduct any other evidence gathering to subsequently determine its content (DSB, decision of December 17, 2015, GZ: DSB-D122.259/0008-DSB/2015, RIS, RS 2).

24. This interpretation can be applied to the current legal situation.

25. Unlike the previous § 26 para. 7 DSG 2000, the GDPR does not provide for an expressly mandated or even penalized "deletion prohibition" during an ongoing information rights procedure. However, deleting data after the receipt of a request for information but before responding to that request does not comply with the principle of processing in good faith and thus constitutes a violation of the data subject's right to information (Art. 15 in conjunction with Art. 5 para. 1 lit. a GDPR) (DSB, decision of June 27, 2019, GZ: DSB-D124.071/0005-DSB/2019, RIS).

D.3. Cessation of the Legal Basis for Processing

26. In the complaint procedure, it was established that the respondent deleted the complainant's data after providing information — thus not contrary to good faith — because it believed that the complainant's registration for a customer loyalty program was not valid due to the complainant's minority, and therefore there was no lawful purpose for the data processing. This view cannot be countered in light of Art. 5 para. 1 lit. a and b and the obligation expressed in Recital 38 for the controller to exercise special caution and restraint when processing the data of minors.

27. If the complainant argues that according to Art. 8 para. 1 GDPR in conjunction with § 4 para. 4 DSG, he was granted the right to effectively consent to the processing of his data upon reaching the age of fourteen, it should be replied that this only applies to the act of consenting to data processing according to Art. 4 no. 11 and Art. 7 GDPR, and this effectiveness is also limited to the use of "services of the information society." According to Art. 1 para. 1 lit. b Directive (EU) 2015/1535, which Art. 4 no. 25 GDPR refers to, this means "any service provided electronically for remuneration, at a distance and at the individual request of a recipient."

28. Art. 8 para. 3 GDPR further clarifies that the question of the validity of a minor's consent does not affect the question of the validity of a contract concluded by the complainant as a minor.

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29. The respondent further argued that it reserves the legal transaction of joining the customer loyalty program "N***Card Program" for adults in its terms and conditions, and therefore terminated the corresponding contractual relationship (see above para. 15). Thus, regardless of whether the customer loyalty program "N***Card Program" constitutes a service of the information society, the basis for data processing in terms of lawful purpose (Art. 5 para. 1 lit. a and b GDPR) has ceased to exist, and the respondent was also obliged to delete the complainant's data in accordance with Art. 17 para. 1 lit. a GDPR without any corresponding request. A lawful purpose for processing must always be present, even if the consent, considered in isolation and detached from its context, should be valid.

30. The examination of the question of whether the respondent was entitled to terminate this contractual relationship (and possibly also to deny the complainant associated material benefits such as special customer discounts or accumulated bonus points) does not fall within the jurisdiction of the data protection authority.

D.4. Conclusions:

31. The respondent has lawfully provided the complainant with information regarding the data processed about him. The simultaneous information that these data would now be deleted does not constitute a violation of the complainant's right to information under Art. 15 GDPR.

32. The complaint was therefore to be dismissed as unfounded in accordance with § 24 para. 5 third sentence DSG.